

Parvez Ahmad v. The Managing Director And 4 Others

High Court of Judicature at Allahabad · Division Bench · 15 July 2022 · Writ-C No. 12856 of 2022 · **Writ disposed; liberty to object under clause 6.5; coercive action stayed eight weeks.**

HEADNOTE

Without expressing any opinion on merits, the Allahabad High Court disposed of a writ challenging recovery of electricity dues of Rs. 1,26,027/- by granting liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after hearing, and staying coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Parvez Ahmad filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery order dated 10 December 2021 for electricity dues of Rs. 1,26,027/-, mandamus not to give effect to that order, and restraint against coercive recovery. Counsel for the power distribution corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-alternate-remedy

HOLDING

A writ challenging a recovery order for electricity dues is disposed of without opinion on merits, with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the distribution licensee is to decide it in accordance with law, preferably within four weeks, after hearing the consumer, and no coercive action is to be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ

Writ against recovery of electricity dues disposed without merits; petitioner relegated to a Para 6.5 objection. ¶ 1

clause-6.5-statutory-remedy-disputed-bill

Disputed demand of Rs. 1,26,027/- left to be decided on a clause 6.5 objection in accordance with law after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY ORDER DATED 10.12.2021 AND THE DISPUTED ELECTRICITY DUES OF RS. 1,26,027/-

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1